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6 IN THE UNITED STATES DISTRICT COURT
7 FOR THE DISTRICT OF ARIZONA
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9 _____, No. CV- _____-JJT
10 Plaintiff(s),
11 v.
12 _____,
13 Defendant(s).
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**RULE 16 SCHEDULING ORDER IN
AN ACTION FOR REVIEW ON AN
ADMINISTRATIVE RECORD
OR
E.R.I.S.A. CASE
OR
IDEA CASE**

(Select One And Delete Others)

15 Pursuant to the terms of the Case Management Plan and the representations made
16 by the parties at the Rule 16 Scheduling Conference, all parties shall comply with the
17 deadlines established in this Order. The court cautions the parties and their counsel that it
18 will strictly enforce the deadlines set forth in this Rule 16 Scheduling Order. The most
19 recent revision of the Fed. R. Civ. P. at the time Plaintiff(s) filed the Complaint in this
20 matter shall apply to all proceedings concerning this case.

21 **IT IS HEREBY ORDERED** that the parties must comply with the following
22 deadlines:
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Deadline	Due Date
Initial Disclosures	
Joining Parties and Amending Pleadings	
Production of Administrative Record	
Close of Conflict of Interest Discovery, if applicable	

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Deadline	Due Date
Completion of disclosure of materials that either party contends should be considered a part of the record on review	
Filing of Administrative Record	
Filing of Plaintiff's Opening Brief, not to exceed 25 pages including any statement of facts	
Filing of Defendant's Response Brief, not to exceed 25 pages including any statement of facts	
Filing of Plaintiff's Reply Brief, not to exceed 11 pages including any statement of facts	
The deadline for engaging in good faith settlement talks	

IT IS FURTHER ORDERED that the parties shall not file written discovery motions without leave of the court. Except during a deposition, if a discovery dispute arises and cannot be resolved despite sincere efforts to resolve the matter through personal consultation (in person or by telephone), the parties shall jointly file (1) a brief written summary of the dispute, not to exceed one page, with explanation of the position taken by each party and (2) a joint written certification that counsel or the parties have attempted to resolve the matter through personal consultation and sincere effort as required by LRCiv 7.2(j) and have reached an impasse. If the opposing party has refused to personally consult, the party seeking relief shall describe the efforts made to obtain personal consultation. Upon review of the filed written summary of the dispute, the court may set a telephonic conference, order written briefing, or decide the dispute without conference or briefing. Any briefing ordered by the court shall also comply with LRCiv 7.2(j). If a discovery dispute arises in the course of a deposition and requires an immediate ruling of the court – a circumstance that should be exceedingly rare – the parties shall jointly contact the court telephonically.